

Suraj Lamp & Industries Pvt. Ltd. v. State of Haryana

Citation: (2012) 1 SCC 656 | Court: Supreme Court | Year: 2012

Coram: Division Bench (R.V. Raveendran & A.K. Patnaik JJ.) | Subject: Property Law & TPA | Provisions: Transfer of Property Act Sec 54, Reg

I. EXECUTIVE SUMMARY & CASE GLIMPSE

SA/GPA/WILL (Sale Agreement / General Power of Attorney / Will) transactions do NOT convey title or ownership in immovable property. Immovable property valued over Rs. 100 can only be lawfully transferred through a registered deed of conveyance under Section 54 TPA.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Transfer of Property Act Sec 54, Registration Act Sec 17. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Transfer of Property Act Sec 54, Registration Act Sec 17.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Power of attorney is an agency creation under Section 201 Contract Act, not a document of ownership. Municipalities and sub-registrars cannot effect mutation of title based on GPA transactions, which facilitate generation of unaccounted wealth.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Invalidated property title transfers via GPA/Agreement to Sell transactions.
- â€ Mandated registered sale deeds under Section 54 TPA for ownership conveyance.
- â€ Prohibited mutation of municipal title records based solely on power of attorney.